



CHAPTER lxix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Lanarkshire County Council. A.D. 1925.
[31st July 1925.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63
Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Lanarkshire County Council Order Confirmation Act 1925. Short title.

A.D. 1925.

SCHEDULE.

LANARKSHIRE COUNTY COUNCIL.

Provisional Order to extend the limits of supply of the District Committee of the Middle Ward of the County of Lanark under the Lanarkshire (Middle Ward District) Water Acts 1892 to 1922 to confer further powers on the County Council of that county and the Middle Ward Committee in relation to the supply of water to repeal the power of the Corporation of Glasgow to supply water in parts of the parish of Rutherglen to amend the Lanarkshire Gas Orders 1914 to 1922 and to confer further powers on the County Council and their District Committees in relation to the supply of gas to make further provision with regard to the valuation of lands within the county and the public health and good government thereof and for other purposes.

WHEREAS by the Acts and Orders set forth in the First Schedule to this Order (which Acts and Orders are in this Order hereinafter collectively referred to as "the Water Acts" and separately as the Act or Order of the year in which the same was passed or confirmed) powers have been conferred on the district committee of the district of the middle ward of the county of Lanark (hereinafter referred to as "the Middle Ward Committee" "the middle ward" and "the county" respectively) for the construction of waterworks and the supply of water within the middle ward (with the exception of certain areas therein which are within the water supply districts of other authorities) and within portions of the lower ward of the county and of the parishes of Cumbernauld and Kirkintilloch in the county of Dunbarton:

And whereas it is expedient that the limits of supply of the Middle Ward Committee should be extended to include the area in the parish of Rutherglen in the lower ward of the county described in the Second Schedule to this Order:

And whereas the area above mentioned is included within the water supply area of the corporation of Glasgow : A.D. 1925.

And whereas by section 31 of the Order of 1913 the limits of supply of the Middle Ward Committee were extended to include the area forming part of the said parish of Rutherglen described in the Second Schedule to that Order but it was provided by the said section that in respect that the said area was part of the water supply area of the corporation of Glasgow the power of the Middle Ward Committee to supply in that area should only take effect in the event of the said corporation failing to give a supply to houses and buildings therein on application being made to them as therein provided and that in the event of the Middle Ward Committee supplying the said area or any part thereof and the said corporation thereafter desiring to supply the same they should be entitled to do so on paying to the Middle Ward Committee the then value of the Committee's pipes in the said area :

And whereas it has been found that a supply of water cannot economically be afforded from the waterworks of the said corporation either to the area described in the Second Schedule to this Order or to the area referred to in section 31 of the Order of 1913 and it is therefore expedient that the power of the said corporation to supply water in those areas and the powers and rights reserved to the said corporation by the said section should be repealed :

And whereas it is expedient to amend the Water Acts in other respects as provided in this Order :

And whereas it is expedient that the County Council of the county (hereinafter referred to as "the County Council") should be authorised to borrow additional money for the purposes of the Water Acts including the following purposes :—

	£
Pipe from Blackwoodyett to Birken-	
shaw - - - - -	25,000
Pipes in Shotts district - - -	5,000
Pipe from Harthill to Westcraigs -	3,000
Pipe from Limekilnburn to Quarter -	4,000
Extensions to housing schemes -	10,000
General extensions - - - - -	23,000

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

And whereas the said works are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas by the Lanarkshire Gas Orders 1914 to 1922 (hereinafter referred to as "the Gas Orders") the Burghs Gas Supply (Scotland) Act 1876 was in relation to the county amended in various respects with a view to enabling the said Act to be adopted and carried into effect within the county as contemplated by section 44 of the Local Government (Scotland) Act 1894 :

And whereas it is expedient to amend the Gas Orders and to confer on district committees of the County Council supplying gas within the county such powers as are usually conferred on gas undertakers and to make other provisions with regard to the supply of gas within the county all as provided in this Order :

And whereas it is expedient to amend the Lands Valuation (Scotland) Act 1854 and the Valuation of Lands (Scotland) Amendment Act 1867 in their application to the county as provided in this Order and to apply to the county the provisions mentioned in this Order of the Burgh Police (Scotland) Act 1892 relating to assessment :

And whereas in the interests of public health and to enable drainage facilities to be provided in the county without imposing an excessive burden on the ratepayers of a special drainage district it is expedient to limit the amount of the sewer assessment which may be levied in a special drainage district and to charge the balance of the expenditure incurred in providing drainage works for such a district against the public health general assessment levied on the whole of the district of the county in which such special drainage district is situate :

And whereas it is expedient to authorise the district committees of the County Council to make experiments in the treatment of sewage and to provide for payment of the expense of such experiments :

And whereas it is expedient to enable district committees of the County Council to provide for the lighting of main roads outwith special lighting districts :

And whereas in the year one thousand nine hundred and twenty-one the County Council acquired on lease certain brickworks at Carfin for the purposes of a housing

scheme then being carried out by the Middle Ward Committee which is now nearing completion and it is expedient that the County Council should be authorised to acquire full property in the said brickworks and that the Middle Ward Committee should be empowered to work the said brickworks for the purposes of any further housing scheme to be carried out by the Middle Ward Committee and other purposes of that Committee : A.D. 1925.

And whereas it is expedient to authorise district committees of the County Council to provide and maintain public baths towards the cost of which a miners' welfare committee has contributed upon such terms and conditions as may be agreed :

And whereas it is expedient to make such provision as is contained in this Order for the formation of footways on private roads within the county :

And whereas it is expedient to authorise the Middle Ward Committee to establish and maintain a works department and to make such provisions in relation thereto as are contained in this Order :

And whereas for the better government of the county it is expedient to enable the County Council to adopt the provisions of the Burgh Police (Scotland) Act 1892 and of the Burgh Police (Scotland) Act 1903 specified in the Third Schedule to this Order :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:—

PART I.

PRELIMINARY.

1. This Order may be cited as the Lanarkshire Short titles. County Council Order 1925.

This Order and the Water Acts may be cited together as the Lanarkshire (Middle Ward District) Water Acts 1892 to 1925.

[Ch. lxi.] *Lanarkshire County* [15 & 16 Geo. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925. This Order and the Lanarkshire Gas Orders 1914 to 1922 may be cited together as the Lanarkshire Gas Orders 1914 to 1925.

Commence-
ment of
Order. 2. This Order except where otherwise expressly provided shall commence and have effect on and from the date of the passing of the Act confirming this Order which date is hereinafter referred to as "the commencement of this Order."

Order
divided
into Parts. 3. This Order is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Water.
Part III.—Gas.
Part IV.—Valuation of Lands.
Part V.—Public Health and Police.
Part VI.—Miscellaneous.

Interpreta-
tion. 4. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Public Health (Scotland) Act 1897 or the Local Government (Scotland) Acts 1889 to 1908 have the same respective meanings and the following expressions shall have the meanings hereinafter assigned to them (namely):—

The expression "the county" means the county of Lanark;

The expression "the County Council" means the County Council of the county;

The expression "the Middle Ward Committee" means the district committee of the district of the middle ward of the county;

The expression "the Public Health Act" means the Public Health (Scotland) Act 1897;

The expression "the Burghs Gas Supply Acts" means the Burghs Gas Supply (Scotland) Acts 1876 to 1918;

The expression "the Gas Orders" means the Lanarkshire Gas Orders 1914 to 1922;

The expression "the sheriff" means the sheriff of the county and includes his substitutes.

PART II.

A.D. 1925.

WATER.

5. The Waterworks Clauses Act 1847 with the exceptions mentioned in the Order of 1917 and the Waterworks Clauses Act 1863 so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Part of this Order are hereby incorporated with this Part of this Order and the several words and expressions to which meanings are assigned by those Acts have in this Part of this Order the same respective meanings unless there be something in the subject or context repugnant to such construction And this Order shall be deemed to be a special Act for the purposes of the said Acts.

Incorporation of
Water Acts.

6. As from the commencement of this Order:—

Extension
of limits of
supply of
Middle
Ward
Committee.

(a) The limits within which the Middle Ward Committee are by the Water Acts authorised and required to supply water shall be extended so as to include the area forming part of the parish of Rutherglen in the county which is comprised within the limits set forth in the Second Schedule to this Order and which area is hereinafter referred to as "the added area";

(b) The Water Acts as amended by this Order shall be in force within the added area as fully and in the same manner as within the limits of supply of the Middle Ward Committee as existing at the commencement of this Order (other than the supplementary water district referred to in section 35 of the Order of 1917) and the County Council and the Middle Ward Committee respectively shall have and may exercise and shall be subject to all and the same powers rights duties and obligations within the added area as they have and may exercise and are subject to within such existing limits (other than as aforesaid) as if the added area had been originally included within such existing limits.

[Ch. lxi.] *Lanarkshire County* [15 & 16 Geo. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

Repeal of
water
powers of
Glasgow
Corporation
in added
area and
other parts
of parish of
Rutherglen.

Recovery
of meter
charges.

Power to
apply
capital
already
authorised.

Power to
County
Council to
borrow.

7. As from the commencement of this Order all powers rights duties and obligations conferred or exerciseable by or incumbent on the corporation of Glasgow under the Glasgow Water Acts 1855 to 1921 with regard to the supply of water within the added area and within the area in the parish of Rutherglen described in the Second Schedule to the Order of 1913 shall cease and as from the date aforesaid subsections (c) and (d) of section 31 of the Order of 1913 shall be and the same are hereby repealed.

8. The Middle Ward Committee shall have and may exercise the same rights and remedies for the recovery of charges for water supplied for other than domestic purposes as the County Council have and can exercise for the recovery of the assessments or rates which they are by the Water Acts and this Part of this Order authorised to impose and levy and section 58 of the Act of 1892 shall be read and take effect accordingly.

9. The Middle Ward Committee may apply to any of the purposes of this Part of this Order to which capital is properly applicable any funds which under the Water Acts belong to or are authorised to be borrowed by the County Council and which may not be required for the purposes for or to which the same were authorised to be raised or directed to be applied.

10. The County Council may in addition to the sums which they are authorised to borrow by the Water Acts borrow on the requisition of the Middle Ward Committee and with the consent of the standing joint committee of the county such further sums as may be required for defraying the costs of and incident to the carrying out of the purposes of the Water Acts and this Part of this Order to which capital is properly applicable on the security of the assessments authorised by the Water Acts and this Part of this Order and may assign any such assessments in security of the moneys so borrowed and the provisions of the Water Acts (other than the provisions of section 25 of the Act of 1896) with reference to moneys borrowed under the authority of those Acts and the repayment thereof shall apply to moneys borrowed under the authority of this Part of this Order. Provided that the total amount to be borrowed by the County Council under and for the

purposes of the Water Acts and this Part of this Order including money already borrowed for the purposes of those Acts shall not exceed the sum of two million one hundred and forty five thousand pounds Provided also that if the County Council pay off any moneys borrowed under the authority of the Water Acts or this Part of this Order otherwise than by means of instalments or of a sinking fund or out of money derived from the sale of land or capital moneys properly applicable to the purpose of such repayment not being moneys borrowed for that purpose it shall be lawful for the County Council again to borrow the amounts so paid off and so from time to time Provided further that if the period determined in terms of the Water Acts and this Part of this Order for the repayment of any money borrowed under the authority of this Part of this Order exceeds forty years the loan to which such determination relates shall unless the Secretary for Scotland otherwise consents be repaid by equal yearly or half-yearly instalments of principal or by means of a non-accumulating sinking fund set apart invested and applied in accordance with the regulations framed by the Secretary for Scotland under section 67 of the Local Government (Scotland) Act 1889 for the time being in force.

A.D. 1925.

11. The following sections of the Act of 1892 and of the Act of 1899 shall apply to mortgages granted by the County Council under the authority of this Part of this Order (that is to say):—

Application
to mort-
gages of
provisions
of Acts of
1892 and
1899.

Of the Act of 1892 :—

- Section 64 (Form of mortgages);
- Section 66 (Transfer of mortgages);
- Section 67 (Transfer of mortgages in case of bankruptcy);
- Section 68 (Mortgage of rates to be personal estate);
- Section 69 (Discharge of mortgages) as amended by section 47 of the Order of 1913.

Of the Act of 1899 :—

- Section 27 (Manner in which mortgages to be signed and executed).

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

Protection
of lender
from
inquiry.

12. No person lending money to the County Council shall be bound to inquire as to the observance by the County Council of any provision of this Part of this Order or be bound to see to the application or be answerable for any loss misapplication or non-application of such money or any part thereof.

Application
of moneys
borrowed.

13. The sums borrowed by the County Council on the requisition of the Middle Ward Committee under the authority of this Part of this Order shall be paid to the Middle Ward Committee as the Middle Ward Committee may from time to time require and shall be applied by the Middle Ward Committee to purposes only to which the sums so borrowed are properly applicable.

PART III.

GAS.

Interpreta-
tion of
expression
"district
committee"
in Part III.
of Order.

14. In this Part of this Order the expression "the district committee" means a district committee of the County Council supplying gas within the county under the powers of the Burghs Gas Supply Acts as amended in relation to the county by the Gas Orders and the expression "the district" means a district in which the district committee are by those Acts and Orders authorised to supply gas including subject to the provisions of section 43 of the Burghs Gas Supply (Scotland) Act 1876 a district adjacent to such first mentioned district.

Amend-
ment of
section 8
of Order of
1914.

15. So much of subsection 1 (c) of section 8 (Further powers as to supply of gas and fittings) of the Lanarkshire Gas Order 1914 as prohibits the district committee from themselves laying any pipes on the consumer's premises except between the main of the district committee and the consumer's meter and from selling any such gas fittings as are mentioned in the said section except through a contractor is hereby repealed.

Attachment
of brackets
and pipes to
buildings.

16.—(1) The district committee may with the consent of the owner of any building attach to that building such brackets pipes and apparatus as may be required for the public lighting of the district:

Provided that:—

(i) Where in the opinion of the district committee any consent under this section is unreasonably

refused they may appeal to the sheriff who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or otherwise as he may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid;

A.D. 1925.

- (ii) Any consent of an owner and any order of the sheriff under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the district committee notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the sheriff shall have the same powers as under proviso (i);
- (iii) The owner may require the district committee temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

(2) The district committee shall not affix any brackets pipes or other apparatus to any building belonging to a railway company without the previous consent in writing of such company which consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers.

17. The district committee may on the application of the owner or occupier of any premises within the district abutting on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Order.

Power to
lay mains
in private
streets.

[Ch. lxix.] *Lanarkshire County*. [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

Power to
lay pipes
for ancillary
purposes.

18. The district committee may within the district lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Provision
of valve
where high-
pressure air
is used.

19.—(1) Every consumer of gas supplied by the district committee who uses air at high pressure for or in connection with the consumption of such gas (in this section referred to as "high-pressure air") shall if required to do so by the district committee provide and fix in a suitable position and use an efficient valve or other appliance for preventing the admission of such air into the service pipe or any main through which such gas is supplied and shall at all times at his own expense keep in proper order and repair any such valve or other appliance as aforesaid which shall have been provided and fixed whether upon such requirement or otherwise.

(2) It shall not be lawful for any consumer at any time after the commencement of this Order to commence to use high-pressure air unless and until he shall have given to the district committee not less than fourteen days' previous notice in writing of his intention to do so.

(3) Every consumer who at the date of the receipt by him of any such demand note as is referred to in paragraph (a) of subsection (5) of this section is using high-pressure air shall within one month after that date give to the district committee notice in writing of such use and if within one month after the giving of such notice the district committee require the consumer giving the same to provide and fix such a valve or other appliance as aforesaid it shall not be lawful for him after the expiration of fourteen days from the receipt of the requirement to continue to use high-pressure air unless before such expiration he shall have complied with the requirement.

(4) If any consumer shall fail to comply with any requirement of the district committee or any obligation

under this section the district committee may cease to supply gas to him and shall not be under any obligation to resume such supply until the default shall have been remedied to their satisfaction. A.D. 1925.

(5) The district committee shall give notice of the effect of the foregoing provisions of this section :—

(a) In the case of all persons who at the commencement of this Order are consumers of gas supplied by the district committee on the demand notes for gas charges payable to the district committee issued next after that date; and

(b) In the case of any person becoming after the commencement of this Order a consumer of gas supplied by the district committee on the first of such demand notes delivered to such person after he shall have become a consumer.

(6) The district committee shall have access at all reasonable times to all premises supplied by them with gas in or upon which high-pressure air is used or the district committee have reason to believe that high-pressure air is or may at the time be used in order to ascertain whether any such valve or appliance as aforesaid is efficient or is in proper order and repair or whether such a valve or appliance is provided and fixed where necessary.

(7) The district committee shall be at liberty to take off remove test inspect and replace any such valve or other appliance as aforesaid such taking off removing testing inspecting and replacing to be done at the expense of the district committee if the valve or other appliance be found in proper order but otherwise at the expense of the consumer.

20.—(1) The district committee may by notice in writing require a consumer of gas supplied by the district committee and used for the working of an engine to fix and use an efficient anti-fluctuator in a suitable position upon the premises upon which the engine is in use or to keep any anti-fluctuator fixed and used by the consumer in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair.

Anti-fluctuators to be used with gas engines.

(2) If the consumer after any such notice as aforesaid fails to fix and use an efficient anti-fluctuator or

A.D. 1925. to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the district committee may cease to supply him with gas.

(3) The district committee may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the district committee and for the purpose of ascertaining whether the anti-fluctuator is efficient and in proper order and repair may take off remove test and inspect the anti-fluctuator such taking off removing testing and inspecting to be done at the expense of the district committee if the anti-fluctuator be found efficient and in proper order but otherwise at the expense of the consumer.

(4) For the purpose of this section an "anti-fluctuator" means an apparatus for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Relief from
obligation
to supply.

21. Unless at the date of the demand for any such new or increased supply of gas as is hereinafter referred to the capacity of the distribution works of the district committee is in the opinion of an arbiter appointed as hereinafter provided insufficient to meet (with a reasonable margin) the requirements (as existing immediately before that date) of the consumers in the portion of the area of supply of the district committee for which such works have been provided (so far as such requirements could reasonably have been foreseen) the district committee notwithstanding anything contained in any other enactment shall not be obliged to give for any purpose other than lighting or domestic use

(a) a new supply of gas for the premises of any person demanding such supply at any time after the commencement of this Order; or

(b) an increased supply of gas (other than an increased supply necessitated by any reduction of the declared calorific value of the gas)

where the giving of such new or increased supply would render necessary the laying of a new main or the making (as an alternative to the laying of a new main) of any

enlargement or alteration of or addition to the distribution works of the district committee. Provided that the foregoing provisions of this section shall not apply in any case in which the person demanding the new or increased supply (in this section referred to as "the applicant") shall enter into a written contract with the district committee

A.D. 1925.

- (i) to receive and pay for a supply of gas of such minimum quantity and for such minimum period as the district committee may reasonably require; or
- (ii) to make such payment or payments to the district committee (in addition to any payments to be made from time to time for gas supplied to the applicant) as the district committee may reasonably require

(according as the district committee may in their discretion determine) in consideration of or by way of contribution towards the expenses to be incurred by the district committee in laying such new main or making such enlargement alteration or addition as aforesaid and shall give such security (if any) for the payment of all moneys which may become due under the contract as the district committee may reasonably demand. Provided also that if any question shall arise under the provisions of this section between the district committee and the applicant as to the sufficiency of the distribution works of the district committee or as to whether such new or increased supply would necessitate the laying of a new main or the making of any such enlargement alteration or addition as aforesaid or as to the reasonableness of the minimum quantity or period or of the payments (in addition to payments for gas supplied) required by the district committee or as to the nature or amount of the security demanded by the district committee such question shall be referred to and determined by an arbiter to be appointed (failing agreement between the district committee and the applicant) by the Board of Trade on the application of either party after notice in writing to the other of them and the decision of such arbiter shall be final and binding. Provided also that in determining any such question as aforesaid the arbiter shall have regard

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925. to the following among other considerations (that is to say) :—

- (a) the total annual quantity of gas required by the applicant the maximum quantity required per hour and the hours of the day during which the district committee may be called upon to supply gas to the applicant;
- (b) the capital expenditure which the district committee would have to incur in the laying of a new main or the making of any enlargement or alteration of or addition to their distribution works as aforesaid in connection with the giving of such new or increased supply; and
- (c) how far such capital expenditure may become unproductive to the district committee in the event of the cesser of the new or increased supply.

As to construction and placing of pipes &c.

22. In order to enable the district committee to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The district committee may if they think fit make a specification or specifications with regard to the minimum size and the material of the pipes with the fittings thereof which are to be laid by the owner or occupier of any premises on those premises either in the first instance or on the occasion of any renewal and different specifications may be made for different classes of premises or for particular premises having regard to the probable maximum consumption of gas thereon at any one time but a specification shall have no force or effect until it has been approved by the Board of Trade who before giving such approval shall refer the matter to an independent gas engineer and may if they think fit direct such engineer to hold a public inquiry into any proposed specification and to have regard to any representations made to the Board by any persons who appear to the Board to be affected by the specification and who attend such inquiry :

- (2) (a) The district committee shall publish once in the *Edinburgh Gazette* and once in each

of two newspapers circulating within the district a notice of any application made by them to the Board of Trade for approval of any specification together with a copy of the proposed specification and an intimation in a form to be approved by the Board of Trade that any person affected by such proposed specification may make representations in writing to the Board of Trade within a period to be specified in the notice ;

A.D 1925.

(b) As soon as practicable after the Board of Trade have approved any specification the district committee shall comply with any directions given to them by the Board of Trade as to the publication or service of copies of the specification as approved or of notice of the giving of such approval ;

(c) A copy of every specification approved by the Board of Trade under this section shall be kept for public inspection at the office of the district committee and copies of every such specification shall be purchasable by any person at the said office at the price of sixpence for each copy :

- (3) When any such pipe or fittings as aforesaid is or are about to be laid or placed notice thereof shall be given to the district committee accompanied by a description of the size and materials of the proposed pipe or fittings and of the purposes for which the gas to be supplied through the same is intended to be used :
- (4) The district committee shall as soon as practicable after receiving such notice (after making such inspection if any of the said pipe or fittings and of the premises in which the same is or are proposed to be laid or placed as they may deem necessary) intimate in writing to the person giving the notice their approval or disapproval of the pipe or fittings as complying or not complying with the appropriate specification :
- (5) No such pipe or fittings as aforesaid shall be laid or placed unless or until the same shall have been approved as aforesaid and when any such pipe or fittings has or have been laid or placed

[Ch. lxix.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

notice thereof shall be given to the district committee and the pipe or fittings shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the district committee or until the pipe or fittings as laid or placed has or have been inspected and approved by the district committee whichever shall first happen :

- (6) Any officer of the district committee duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend for the purpose of any such inspection as aforesaid and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the appropriate specification of the district committee the district committee may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (7) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid between the main and the meter shall be placed as near as practicable to the district committee's main but within the outside wall of the building and when any such meter has been placed the person placing the same shall give to the district committee the like notice and the district committee shall have the like right of inspection as are respectively referred to in subsections (5) and (6) of this section and if the meter is not placed as required by this section the district committee may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (8) The provisions of this section relating to pipes and the fittings thereof shall not apply to any pipes or fittings belonging to a railway company and laid or placed or intended to be laid or placed in any premises (not being a dwelling-house or premises appurtenant to a dwelling-house) of that company—

(a) elsewhere than between the main of the district committee and the meter; or

(b) between such main and the meter unless and except so far as such pipes or fittings are covered over or intended to be covered over: A.D. 1925

(9) In and for the purposes of this section the expression "fittings" includes only the joints angles and connections used in placing or laying pipes.

23. The power to enter premises and remove pipes meters and fittings or apparatus conferred upon the district committee by section 53 of the Burghs Gas Supply (Scotland) Act 1876 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the district committee shall not require to take a supply of gas from the district committee or to hire all or any of the pipes meters fittings or apparatus belonging to the district committee. Removal of fittings where gas supply discontinued.

24. If a person requiring a supply of gas from the district committee has previously quitted premises at which gas was supplied to him by the district committee without paying to them all gas charges and meter rent due from him to the district committee then the district committee may refuse to furnish to him a supply of gas until he pays such charges and rent. Power to refuse to supply persons in debt for other premises.

25.—(1) In any case in which the district committee are by virtue of any enactment relating to their gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the district committee without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the district committee) and any person who shall reconnect such service pipe with the meter without the consent of the district committee shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847: As to mode of cutting off supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 45 of the Burghs Gas Supply (Scotland) Act 1876.

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A D 1925.

(2) For the purposes of this section the district committee (subject to the conditions specified in section 53 of the Burghs Gas Supply (Scotland) Act 1876) shall have and may exercise the like powers of entry as are exerciseable under the said section for the purposes of that section.

Expenses
of recon-
necting dis-
continued
supply.

26. In any case in which in consequence of any default on the part of the occupier of any premises the district committee have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the district committee the expenses of reconnecting the supply and the district committee shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Amendment
of section 13
of Gas-
works
Clauses
Act 1847.

27. In the application to the district committee of the Gasworks Clauses Act 1847 section 13 of that Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided that every such contract entered into by the district committee shall be alike in terms and amount to all consumers of gas supplied in like circumstances and for the same purposes" were added at the end of that section.

District
Committee
to pay in-
terest on
money
deposited
as security
for gas
meters &c.

28. If any person is required by the district committee to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the district committee shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Tenants
liability for
sub-tenants
gas supply.

29. The district committee may in the case of sublets and in addition to their recourse against the actual consumer charge and recover from the tenant of any house or other premises who sublets such house or premises for a period not exceeding two months the amount of rates and charges for gas used and consumed thereon and any other sums due to the district committee in connection with the supply of gas to such sub-tenant during such sub-tenancy.

30. Where any person has for the purposes of a stand-by only a supply of gas laid on by the district committee to any premises used for trade or business purposes for which he has at the same time a separate supply of electricity or gas for power or other purposes the district committee shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by the district committee not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lesser sum. Provided that in fixing the amount of such minimum charge the district committee shall have regard to the probable maximum supply of gas which might at any time be required for such premises :

A.D. 1925.

—
 As to pre-
 mises using
 electricity
 or other gas.

Provided also that in respect of any premises for which the whole supply of gas afforded by the district committee is taken through a meter having a nominal capacity of not more than ten lights the amount of the minimum charge shall not exceed five shillings for any quarter of a year.

31. In the event of any meter used by a consumer of gas being tested in manner provided by the Gas Regulation Act 1920 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the district committee shall be paid by or to the district committee to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the district committee.

Period of
 error in
 defective
 meter.

32. At least twenty-four hours' notice shall be given to the district committee by every gas consumer either personally at the office of the district committee or in writing before he shall quit any premises supplied with gas by meter by the district committee and in default of such notice the consumer so quitting shall be liable to pay to the district committee the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter

Gas con-
 sumers to
 give notice
 to district
 committee
 before re-
 moving.

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925. on such premises or the date from which any subsequent occupier of such premises shall require the district committee to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the district committee.

Notice to
discontinue
supply of
gas. 33. A notice to the district committee from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the district committee or be given by the consumer personally at the office of the district committee.

Power to
take
licences for
use of
patents. 34. The district committee may for the purposes of their gas undertaking but not so as to acquire any exclusive right therein contract for take and use any licence or authority granting any right or privilege of working using or vending any invention subject to letters patent in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of residual products obtainable in or arising from such manufacture or from the materials used therein.

As to
offices and
showrooms. 35. The district committee may in connection with and for the purposes of their gas undertaking fit up showrooms and offices and exhibit specimen installations and give demonstrations of the uses to which gas may be put and may appoint and pay persons for the purposes aforesaid.

Dwelling-
houses for
employees. 36. The County Council and the district committee for their respective rights and interests may erect purchase take on feu or lease and maintain houses for workmen in the employment of the district committee in connection with their gas undertaking whose duties require them to reside in close proximity to the places where they are employed and they may also erect maintain and let any such houses or buildings upon any lands for the time being belonging or leased to them in connection with such undertaking.

Subscrip-
tions to 37. Subject to the consent of the Secretary for Scotland the district committee may pay out of the

revenue of their gas undertaking reasonable subscriptions whether annually or otherwise to the funds of any association formed or to be formed for the discussion of questions relating to the gas industry and for consultation on matters affecting the common interests of gas undertakers and any reasonable expenses of the attendance of any members or officers of the district committee at conferences or meetings of any such association and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings.

A.D. 1925.
 —
 associations
 and other
 expenses.

38. The district committee and any other local authority and any company or body supplying gas may with the approval of the Board of Trade enter into and carry into effect agreements for the interchange of facilities or for mutual assistance of the one by the other with regard to the giving or taking of a supply of gas and the distribution and supply of gas and the management and working of the gasworks of the parties to any such agreement and any matters or things incidental to or connected with any of the matters aforesaid :

Power to
 enter into
 agreements
 with other
 gas under-
 takers for
 mutual
 assistance.

Provided that the parties entering into any such agreement shall remain and be subject to all and the same obligations and liabilities to all persons not being parties to such agreement as they would have been if no such agreement had been entered into.

39.—(1) The district committee may with the consents and subject to the conditions hereinafter provided combine two or more districts of the county within which the Burghs Gas Supply Acts have been adopted into one district for carrying on within the combined district the purposes of those Acts as applied and amended by the Gas Orders.

Power to
 combine gas
 supply
 districts.

(2) Such combination shall not be made except with the consent of the County Council and of the sub-committee appointed in terms of section 70 of the Order of 1917 of each of the districts proposed to be so combined.

(3) For the purpose of giving effect to such combination the County Council and the district committee may according to their respective powers in relation to gas supply make such provisions financial and otherwise including the appointment of a sub-committee for

A.D. 1925. such combined district in terms of section 70 of the Order of 1917 and may within the county execute such works either within or outwith a district in which the Burghs Gas Supply Acts have been adopted as may be necessary or expedient.

(4) For the purposes of this section the district committee shall have and may exercise within the county beyond the area of any district within which the Burghs Gas Supply Acts have been adopted the powers of the Gasworks Clauses Act 1847 in relation to the breaking up of streets for the purpose of laying pipes subject to the duties and obligations imposed by that Act in relation to the exercise of those powers.

PART IV.

VALUATION OF LANDS.

Date for
issuing
notices.

40. In its application to the county section 5 (Notice to be given to persons whose property is valued) of the Lands Valuation (Scotland) Act 1854 shall be read and have effect as if the words—

- (1) “ Twentieth day of August ” were substituted for the words “ twenty-fifth day of August ” occurring therein;
- (2) “ Fifteenth day of June ” were substituted for the words “ fifteenth day of July ” occurring therein; and
- (3) “ Third day of September ” were substituted for the words “ eighth day of September ” occurring therein.

Dates for
appeal
courts.

41. In its application to the county section 8 (Courts of appeal) of the Lands Valuation (Scotland) Act 1854 as amended by section 7 (1) of the Local Government (Scotland) Act 1908 shall be read and have effect as if the words—

- (1) “ Thirtieth but not earlier than the fifteenth day of September ” were substituted for the words “ nineteenth but not earlier than the tenth day of September ” occurring therein; and
- (2) “ Fifteenth day of October ” were substituted for the words “ thirtieth day of September ” occurring therein.

42.—(1) In its application to the county section 9 (Persons entitled to appeal) of the Lands Valuation (Scotland) Act 1854 shall be read and have effect as if the words “not later than the third day of September” in each year lodge an appeal in writing with the “assessor” were substituted for the words “six days at least before such appeal is heard intimate in writing to the assessor that he is to maintain such appeal” occurring therein. A.D. 1925.
—
Lodging of
appeals.

(2) In its application to the county section 7 (Time for lodging appeals against assessor’s entries in valuation roll) of the Valuation of Lands (Scotland) Amendment Act 1867 shall be read and take effect as if the words—

- (i) “Third day of September” were substituted for the words “tenth day of September” occurring therein; and
- (ii) “Fifteenth day of October” were substituted for the words “thirtieth day of September” occurring therein.

43. Nothing in this Part of this Order contained shall extend or apply to the assessor of railways and canals under the Lands Valuation Acts or to the valuation roll made up by him under those Acts. Saving for
assessor of
railways
and canals.

44. The provisions of the undermentioned sections of and schedule to the Burgh Police (Scotland) Act 1892 shall for the purpose of the assessment levy collection and recovery of the county consolidated rates and of any other rate or assessment which the County Council are or may hereafter be authorised to assess levy collect or recover within the county and without prejudice to any existing powers of the County Council for those purposes extend and apply to and within the county videlicet :— Application
to county
of certain
powers of
Burgh
Police
(Scotland)
Act 1892
relating to
assessment.

Section 346 (Assessment on premises occupied for part of a year);

Section 351 (Commissioners may alter and amend the roll);

Section 353 (Recovery of assessments);

Schedule VIII. :

Provided that in the application to the county of the said sections and schedule there shall be substituted

[Ch. lxix.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925. for the expressions "commissioners" "burgh" and
— "magistrates" occurring therein the expressions
"County Council" "county" and "two or more
justices of the peace" respectively.

Supple-
mentary
valuation
roll.

45. The County Council acting under the Lands Valuation (Scotland) Act 1854 in addition to the ordinary valuation roll made up under the said Act in each year may between the first day of January and the first day of March in each year if the County Council so resolve before the said first day of January cause to be made up by the assessor under the said Act a supplementary valuation roll showing the yearly rent or value and other particulars as in the ordinary valuation roll of all lands and heritages that may have come into existence or occupancy within the county after the completion of the ordinary valuation roll last made up and also including a column stating the respective dates when such lands and heritages came into existence or occupancy and all statutory provisions applicable to the ordinary valuation roll shall mutatis mutandis be applicable to the said supplementary roll and the County Council shall be entitled to impose supplementary assessments and rates in respect of all lands and heritages in such supplementary roll proportionate to the respective periods between the dates so stated and the term of Whitsunday next following for all purposes for which the County Council may be entitled to assess or impose assessments and rates which supplementary assessments and rates shall be made so far as possible in the same manner and under the same conditions and with the same powers of recovery as are applicable to the corresponding assessments and rates for the whole year.

Penalty on
agents or
factors
making false
returns for
valuation
purposes.

46. Any factor agent or person acting for or in name of a proprietor or tenant or occupier of lands and heritages who shall knowingly or wilfully present or cause to be presented to the assessor for the county under the Lands Valuation (Scotland) Act 1854 and Acts amending the same a false statement of the yearly rent or value of any such lands and heritages within the county belonging to or occupied by the proprietor or tenant or occupier for or in name of or on behalf of whom he acts shall be liable to pay a penalty of the like amount as is imposed by the said Acts upon proprietors tenants

or occupiers of lands and heritages presenting or causing to be presented false statements to such assessor and such penalty shall be recoverable and applied in the manner provided by the said Acts. A.D. 1925.

PART V.

PUBLIC HEALTH AND POLICE.

47. As from the fifteenth day of May one thousand nine hundred and twenty-five the special sewer assessment authorised by section 133 of the Public Health Act to be raised and levied on and within any special drainage district in the county shall not exceed a rate of two shillings in the pound. Provided that if the produce of such rate in any special drainage district shall not be sufficient to meet the expenditure bonâ fide incurred or contemplated within such special drainage district it shall be lawful for the County Council to charge any excess of such expenditure over the produce of a rate of two shillings in the pound upon the public health general assessment of the district of the county in which such special drainage district is situate and for the purpose of such charge the exemption of lands and premises within special drainage districts from liability to assessment for the expenses of making sewers and drainage works in other parts of the district of the local authority contained in the proviso to section 133 of the Public Health Act and the exemption of premises outwith special districts from the imposition of any rate in respect of the expenditure within any special district contained in the second proviso to section 137 of the Public Health Act shall cease to apply in the county.

Limitation
of sewer
assessment
in special
drainage
districts.

Upon the formation of a special drainage district within the county subsequent to the fifteenth day of May one thousand nine hundred and twenty-five the local authority may determine that any debt which may have been incurred for the provision of sewerage and drainage within the area embraced within the said special drainage district or any part thereof shall from and after the date of its formation affect such special drainage district to the relief of the remainder of the area of the district upon which such debt has originally been charged and the provisions of section 122 of the Public Health Act relating to resolutions of the local

[Ch. lxix.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925. authority determining questions regarding the payment of any debt which may affect any district or special drainage district shall mutatis mutandis apply to the determining of the debt or portion thereof which is to affect the special drainage district on its formation.

Experiments in treatment of sewage.

48. It shall be lawful for a district committee of the County Council to conduct within their district experiments in the treatment of sewage by the process known as the activated sludge process or other process or processes for the treatment of sewage and to pay the expenses of conducting such experiments if conducted within a special drainage district out of the special sewer assessment leviable within that district or out of the public health general assessment leviable within the district of the county in which such special drainage district is situate or partly out of the one and partly out of the other as the district committee with the approval of the County Council may determine or if such experiments are conducted outwith a special drainage district then out of the said public health general assessment :

Provided that nothing in this section shall exempt a district committee from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them in pursuance of this section.

Lighting of main roads.

49.—(1) A district committee of the County Council may make provision for the lighting in a suitable manner of such parts of main roads within their district as are situate outwith a special lighting district and for that purpose shall have and may exercise all such powers as they have or can obtain by adoption in relation to the lighting of a special lighting district.

(2) Any expenditure incurred by the district committee for the purposes of this section shall be paid out of the assessment under the Roads and Bridges (Scotland) Act 1878 leviable within the district of the district committee.

Provisions in regard to Carfin Brickworks.

50. Upon the completion of the Middle Ward Committee State-assisted housing schemes under section 1 of the Housing Town Planning &c. (Scotland) Act 1919 or on the commencement of this Order whichever is the later the County Council shall feu sell or otherwise dispose

of the brickworks at Carfin in the parish of Bothwell known as the Carfin Brickworks at a price to be approved by the Scottish Board of Health or if the County Council so elect they may in lieu of disposing thereof take over the said brickworks for any of the purposes of the Middle Ward Committee at a sum to be agreed on between the Board and the County Council or in the event of their differing to be fixed by a single arbiter to be appointed by the Board and the County Council jointly or failing agreement by the sheriff on the application of either party. In the event of the said brickworks being taken over as aforesaid the Middle Ward Committee may carry on work and use the said brickworks for any of the purposes of the Middle Ward Committee and may sell bricks and other articles produced at the said brickworks in excess of the quantity required for the purposes aforesaid and the County Council shall sell feu or otherwise dispose of the said brickworks when no longer required for the said purposes.

A.D. 1925.

The County Council may borrow such money as may be required for the purposes aforesaid and the expenses thereof so far as capital is properly applicable thereto and the sums necessary for the repayment of any money borrowed therefor together with interest thereon and costs of maintenance shall be paid out of such assessment or assessments leviable within the district of the Middle Ward Committee as that Committee with the consent of the County Council may determine.

51. The Middle Ward Committee may establish maintain and carry on a works department for the maintenance repair enlargement or alteration of the works or property of the County Council within the middle ward district and may provide such workshops plant and machinery as may be necessary or expedient for the purposes thereof and the County Council may borrow such money as may be required for the purposes aforesaid not exceeding twenty thousand pounds and the expenses thereof and the sums necessary for the repayment of any money borrowed therefor together with the interest thereon shall be paid out of such assessment or assessments levied within the district of the Middle Ward Committee as that committee with the consent of the County Council may determine.

Middle
Ward
works
depart-
ment.

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

—
Repayment
of moneys
borrowed.

52. Any sums borrowed by the County Council under the sections of this Order of which the marginal notes are respectively "Provisions in regard to Carfin Brickworks" and "Middle Ward works department" shall be repaid within such periods not exceeding in the case of money borrowed for the acquisition of land sixty years in the case of money borrowed for the erection of buildings twenty years and in the case of money borrowed for the provision of plant or machinery fifteen years as the County Council with the consent of the standing joint committee may determine in each case. Provided that if the County Council pay off any moneys borrowed under either of the said sections otherwise than by means of instalments or of a sinking fund or out of money derived from the sale of land or capital moneys properly applicable to the purpose of such repayment not being moneys borrowed for that purpose it shall be lawful for the County Council again to borrow the amounts so paid off and so from time to time. Provided further that if the period determined in terms of this section for the repayment of any moneys borrowed under either of the said sections for the acquisition of land exceeds fifty years the loan to which such determination relates shall unless the Secretary for Scotland otherwise consents be repaid by equal yearly or half-yearly instalments of principal or by means of a non-accumulating sinking fund set apart invested and applied in accordance with the regulations framed by the Secretary for Scotland under section 67 of the Local Government (Scotland) Act 1889 for the time being in force.

Agreements
with miners'
welfare
committees
as to public
baths.

53. It shall be lawful for a district committee of the County Council to enter into and carry into effect an agreement or agreements with any committee constituted under section 20 (Establishment of fund for improvement of social conditions of colliery workers) of the Mining Industry Act 1920 (hereinafter called "the welfare committee") for the provision by the district committee at the expense wholly or in part of the welfare committee of public baths within any special district formed under section 44 (1) (c) of the Local Government (Scotland) Act 1894 within the district of the district committee and for the subsequent maintenance thereof upon such terms and conditions as may be agreed between the district committee and the

welfare committee including conditions conferring on colliery workers and their families special privileges in relation to the said baths. A.D. 1925.
—

54.—(1) The County Council may at a meeting called after due notice by resolution adopt within any district or districts of the county subsection (2) of this section and after a date to be specified in such resolution the said subsection shall have effect in such district or districts of the county as the case may be exclusive of any burgh or police burgh therein. Footways on private roads.

(2) The owner of any land or premises fronting on any private road within any such district as aforesaid shall when required by the district committee for the purpose of providing suitable and convenient access to any houses or other buildings fronting thereon form a footway before his property of the breadth sanctioned by the County Council or district committee at the time when the road was sanctioned or if no such breadth has been specified of such breadth as the district committee shall direct with kerbs water channels and drains for carrying off surface water and shall well and sufficiently construct and (if required) pave such footway or any footway that may already exist and construct such kerbs water channels and drains all with such materials and in such manner and form as the district committee may direct. The said owner shall further from time to time maintain and keep in repair the said footway kerbs water channels and drains or if called upon relay the same all with such materials and in such manner and form as the district committee may direct. Provided that if the district committee require the footway or any part thereof to be paved they shall relieve the owner of the future maintenance of such pavement. The district committee may instead of requiring the said footway to be at once paved require the same or such part thereof as they may specify to be provided with kerbs water channels and drains and laid with gravel cinders or other similar material and may from time to time require such material to be renewed and may at any time thereafter require the portions so laid to be paved or laid with any other material. The obligation by this subsection imposed upon the said owner shall cease upon the road ceasing to be a private road but the

Ch. lxix.] *Lanarkshire County* [15 & 16 Geo. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925. district committee shall notwithstanding anything done
— under this subsection be thereafter entitled (except in
the case where and to the extent to which they have
required the footway to be paved as aforesaid) to put
in force any other powers possessed by them with
reference to the footways of public roads :

Provided that where any property belonging to
any one owner fronts on a private road for a
continuous length exceeding one hundred feet the
powers conferred by this subsection shall not be exer-
cised in respect of such property except in so far as such
property is built upon or used as a garden or pleasure
ground or pertinent of a house :

Provided further that where it appears to the
owner of any lands or premises affected by a requisition
of the district committee under this subsection that such
requisition is in the circumstances unreasonable owing to
the extent of unbuilt on land fronting on the private
road or to the fact that the properties in respect of
which the powers of this subsection are not exerciseable
are so situated in relation to the other lands and
premises fronting on the private road that the forma-
tion of a footway giving suitable and convenient access
as aforesaid is not practicable or for any other special
reason it shall be in the power of such owner to appeal
to the sheriff or Court of Session against such requisition
in manner provided by the section of this Order of which
the marginal note is "Appeal."

Any expenses incurred by the district committee
under this subsection shall be paid out of the assessment
under the Roads and Bridges (Scotland) Act 1878
leviable by the County Council within the district of
such committee.

Adoption
of sections
of Burgh
Police
(Scotland)
Acts.

55.—(1) The County Council may subject as herein-
after provided at a meeting called after due notice by
resolution adopt within the county or within any district
or districts of the county the sections or parts of sections
or any of such sections or parts of sections of the Burgh
Police (Scotland) Act 1892 and of the Burgh Police
(Scotland) Act 1903 enumerated in Part I. of the Third
Schedule to this Order and after a date to be specified
in such resolution the adopted sections or parts of

sections shall have effect in the county or district or districts as the case may be exclusive of any burgh or police burgh therein. Provided that sections 329 330 and 331 of the Burgh Police (Scotland) Act 1892 shall not be adoptive except within a special drainage district of the county. A.D. 1925.

(2) Provided further that in such sections and parts of sections as may be adopted in terms of this section there shall be substituted for the words and expressions occurring therein set forth in the second column of Part II. of the said Third Schedule the words and expressions set forth in the third column of the said Part II.

(3) Provided further that offences against and penalties for contravention of the provision of any of the said sections or parts of sections may be prosecuted and recovered before the sheriff or any two or more justices of the peace.

56. Any person liable to pay or to contribute towards the expense of any work ordered or required by the County Council or by a district committee of the County Council under any section or part of a section of the Burgh Police (Scotland) Act 1892 or of the Burgh Police (Scotland) Act 1903 adopted by the County Council in terms of the immediately preceding section of this Order and any person whose property may be affected or who thinks himself aggrieved by an order or resolution or deliverance or act of the County Council or the district committee made or done under subsection (2) of the section of this Order of which the marginal note is "Footways on private roads" or under any such section or part of a section as aforesaid may unless in the said subsection section or part of a section otherwise specially provided appeal either to the sheriff or to the Court of Session by lodging a note of appeal within fourteen days after intimation of the order or deliverance of the County Council or the district committee complained of or within fourteen days after the commission of the act complained of with the sheriff clerk of the county if the appeal is made to the sheriff or with the principal clerk of session at Edinburgh if the appeal is made to the Court of Session which note of appeal shall state the grounds of such appeal and be signed by the appellant or his counsel or agent and the

Appeal.

[Ch. lxix.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

sheriff or court shall order a copy of the appeal to be served on the county clerk or the clerk to the district committee as the case may be and appoint him within six days after such service to lodge answers thereto and shall thereafter hear parties and determine the matter of the appeal and shall make such order thereon either confirming quashing varying or redressing the order resolution deliverance or act appealed against and shall award such costs to either of the parties as the sheriff or court shall think fit. Provided always that the judgment of the sheriff-substitute shall be subject to review by the sheriff and subject to this review by the sheriff the judgment of the sheriff-substitute shall be final and not subject to appeal to any other court except as after mentioned. Provided that any party dissatisfied with the judgment of the sheriff as erroneous in point of law may appeal thereagainst to the Court of Session in terms of and subject to the provisions of the Summary Jurisdiction (Scotland) Act 1908. Provided that the limit of time for such appeal shall be six days instead of five days as provided by the last cited Act.

PART VI.

MISCELLANEOUS.

For protection of
 London and
 North
 Eastern and
 London
 Midland
 and Scottish
 Railway
 Companies.

57. The following provisions for the protection of the London and North Eastern Railway Company and the London Midland and Scottish Railway Company (hereinafter in this section called for their respective interests "the company") shall unless otherwise agreed between the company and a district committee of the County Council (hereinafter in this section referred to as "the district committee") apply and have effect (that is to say):—

(1) Before constructing any work in pursuance of this Order or any subsequent repairs thereof in over under or affecting any of the railways works and property of the company the district committee shall submit to the company plans sections working drawings and specifications thereof showing the line and level and the manner in which such works or operations are to be carried out and the mode of execution thereof for

the approval of the company which approval shall not be unreasonably withheld and shall be deemed to have been given unless the company signify their disapproval within twenty-one days after submission of the said plans section working drawings and specifications for approval: A.D. 1925.
—

- (2) All the said works and operations shall be constructed carried on and completed and thereafter maintained repaired and renewed by the district committee in strict conformity with the plans sections working drawings and specifications so approved at the sole risk and cost of the district committee and at the sight and to the reasonable satisfaction of the engineer of the company :
- (3) The district committee shall not without the previous consent in writing of the company enter upon or alter or interfere with the railways works and property of the company further or otherwise than may be necessary for constructing maintaining and renewing any of the works constructed in pursuance of this Order to be laid in upon over or under the said railways works and property of the company of which they shall give the company fourteen days' notice in writing except in cases of emergency in which case such notice as is reasonably practicable shall be given :
- (4) The district committee shall pay to and reimburse the company in all reasonable costs charges and expenses which they may incur in connection with the construction of any of the works constructed in pursuance of this Order or the subsequent maintenance renewal use alteration replacing or repair thereof including (without prejudice to the said generality) any expense which the company may reasonably incur in connection with the employment of inspectors signalmen watchmen and others and for superintendence of the works hereby authorised during construction and for all extra precautions for the safety and working of their traffic

[Ch. lxix.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

or protection of their property on account of the execution maintenance renewal use alteration replacing or repair of the said works :

- (5) All the said works and operations and the subsequent maintenance renewal alteration replacing or repair thereof shall in so far as the same affect the railways works and property of the company be carried out by the district committee so as not to injure or alter or interfere with (except so far as may be necessary for carrying out the said works and operations) or injure or endanger the structure or stability of any of the said railways works and property of the company and the district committee shall at their own expense execute all underpinning or other works which may be necessary to secure the support or safety of the said railways works and property of the company and should any damage or injury to or interruption or impediment of or interference with the passage or conduct of traffic on the said railways works and property of the company be caused by or be in any way owing to the said works or operations of the district committee or the failure of or defect in any of the said works or operations the district committee shall at their own cost and free of all expense to the company execute and do all such works as may be necessary to restore the damage or injury and remove such interruption impediment or interference as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the district committee and execute all such works and do all such things as may be necessary to restore such damage or injury or to remove or prevent such interruption impediment or interference and the district committee shall on demand repay to the company all reasonable costs and expenses incurred by them in connection therewith :
- (6) The district committee shall make reasonable compensation to the company for all loss or damage caused by such works and operations

interruption impediment or interference to or with the said railways and works and property of the company and the district committee shall also free and relieve and indemnify the company from all damages or compensation which may be recovered from them at the instance of their employees passengers owners of merchandise traders or owners of property adjoining the said works or any other person or persons by reason of such interruption impediment or interference or by reason of any accident so far as such interruption impediment interference or accident shall have been occasioned by or through the acts or default of the district committee or those for whom they are responsible :

A.D. 1925

- (7) Should it be necessary in constructing the works constructed in pursuance of this Order or in subsequently maintaining renewing altering or repairing the same to alter or remove any telegraph posts wires or telegraphic telephonic or signalling apparatus belonging to or maintained by the company the district committee shall pay to and reimburse the company in all expense incurred by them in connection with such alteration or removal and the erection of other posts wires or apparatus in substitution for those so altered or removed :
- (8) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company from maintaining and repairing and whenever in their discretion thought necessary reconstructing altering renewing deviating widening or enlarging any of the lines of railway or other works or property belonging to them without interference on the part of the district committee and without incurring any liability to them or to any person using the works constructed in pursuance of this Order for any loss injury damages or expenses which may arise from such maintenance repair reconstruction alteration renewal deviation widening or enlarging Provided that any extra expense which

[Ch. lxix.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.
—

the company may incur in such maintenance repair renewal deviation widening enlarging alteration or reconstruction by reason of the existence of any of the said works shall be paid by the district committee :

- (9) In the event of the company doing any of the acts referred to in the immediately preceding subsection they shall do so in such manner as to cause as little damage and interference as practicable to and with the works of the district committee and shall give (except in case of emergency in which case such notice as is reasonably practicable shall be given) fourteen days' previous notice in writing to the district committee before commencing any such operations as may affect any of the said works :
- (10) If the company give to the district committee notice that they themselves desire to construct so much of the works constructed in pursuance of this Order or to carry out so much of the alterations of any mains pipes or culverts to be laid by the district committee under the powers of this Order as will be situate on under over or immediately contiguous to any railway or works of the company the company may themselves execute such works and alterations at the sight and to the reasonable satisfaction of the engineer to the district committee and recover the reasonable cost thereof from the district committee :
- (11) Any question or difference between the district committee and the company arising under this section shall be referred to and determined by an arbiter to be agreed upon between the district committee and the company or failing agreement to be nominated by the sheriff on the application of the district committee or the company.

Saving for
Crown.

58. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any land buildings or works vested in or occupied by the

Crown or any department of His Majesty's Government A.D. 1925.
except to such extent as His Majesty or such department
may voluntarily agree. —

59. The costs charges and expenses of and incident Costs of
to the preparing for obtaining and confirming this Order Order.
or otherwise in relation thereto shall be paid by the
County Council out of the assessments to be levied or
out of the moneys to be borrowed under the authority
of the Water Acts and this Order and out of the public
health general assessments and the assessment under
the Roads and Bridges (Scotland) Act 1878 in such
proportions as the County Council may determine
Provided that if the said costs charges and expenses
are paid out of borrowed money the same shall be repaid
within five years from the commencement of this Order.

The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

LIST OF THE WATER ACTS.

- The Lanarkshire (Middle Ward District) Water Act 1892.
 - The Lanarkshire (Middle Ward District) Water Act 1896.
 - The Lanarkshire (Middle Ward District) Water Act 1899.
 - The Lanarkshire (Middle Ward District) Water Order 1902.
 - The Lanarkshire (Middle Ward District) Water Order 1908.
 - The Lanarkshire (Middle Ward District) Water Order 1913.
 - The Lanarkshire County Council (Water &c.) Order 1917.
 - The Lanarkshire County Council Order 1922.
-

A.D. 1925.

SECOND SCHEDULE.

DESCRIPTION OF THE BOUNDARIES OF THE ADDED AREA BEING PART OF THE PARISH OF RUTHERGLEN.

Commencing at a point in the parish boundary between the parishes of Carmunnock and Rutherglen near Burnside Farm where the said boundary intersects the centre line of the public road leading from Mid Farm to Burnside thence following the said parish boundary generally in a westerly north-westerly and northerly direction to a point in the said parish boundary where it is intersected by a line parallel to and 120 feet south from the south side of Blairbeth Road thence in an easterly direction along the said line till it intersects the western boundary of the feu fronting Blairbeth Road at the junction of Blairbeth Road with the road leading south from Blairbeth Road to Stirling Drive thence in a southerly direction on a line in range of the western boundary of the said feu to a point where it meets the range of the centre line of Stirling Drive thence along the range of the said centre line of Stirling Drive and the said centre line of Stirling Drive for a distance of 580 feet or thereby in an easterly direction from the western end of Stirling Drive thence southward for a distance of 130 feet or thereby thence in an easterly direction along the southern boundary of the feus on the south side of Stirling Drive and range thereof till it intersects the western boundary of the land occupied by Blairbeth Terrace thence in a northerly direction along the said boundary till it meets the south side of Blairbeth Road thence along the south side of Blairbeth Road in an easterly direction till it meets the western boundary of the ground feued by J. Miller's trustees to John Train thence in a southerly direction along said boundary to the southern boundary of the feus on the south side of Peveril Avenue thence eastward along said south boundary for a distance of 260 feet or thereby thence in a northerly direction to the centre line of Peveril Avenue thence eastward along said centre line of Peveril Avenue and range thereof till it intersects the boundary between the parish of Rutherglen and the parish of Cambuslang thence following the said parish boundary in a southerly south south-easterly and an easterly direction generally to the northern extremity of the eastern boundary of enclosure No. 291 on the 25 inch Ordnance survey map of the parishes of Cambuslang Carmunnock and Rutherglen dated 1913 thence in a southerly direction following the eastern boundary of the said enclosure

No. 291 and range thereof to the centre line of Lochbrae Drive thence in a westerly direction following the said centre line till it meets the centre line of the public road leading from Mid Farm to Burnside thence in a south-easterly and southerly direction following the centre line of the said public road to the point of commencement. A.D. 1925.

THIRD SCHEDULE.

PART I.

THE SECTIONS AND PARTS OF SECTIONS OF THE BURGH POLICE (SCOTLAND) ACT 1892 AND OF THE BURGH POLICE (SCOTLAND) ACT 1903 REFERRED TO IN THE SECTION OF THIS ORDER OF WHICH THE MARGINAL NOTE IS "ADOPTION OF SECTIONS OF BURGH POLICE (SCOTLAND) ACTS."

Of the Burgh Police (Scotland) Act 1892 :—

Section 164.

Section 223.

Section 249.

Section 289.

Section 290.

Section 295.

Sections 329 to 333 both inclusive.

Section 381 Subsections (18) (22) (23) (48) and (53)
as amended by Section 104 (2) (x) of the
Burgh Police (Scotland) Act 1903.

Sections 395 to 398 both inclusive.

Sections 400 to 403 both inclusive.

Section 406.

Section 407.

Sections 412 to 415 both inclusive.

Sections 433 to 453 both inclusive.

Of the Burgh Police (Scotland) Act 1903 :—

Section 18.

Section 62.

Section 80.

Section 81.

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

PART II.

FOR THE PURPOSES OF THE ADOPTION OF THE ABOVE SECTIONS AND PARTS OF SECTIONS BY THE COUNTY COUNCIL THE WORDS AND EXPRESSIONS IN THE 3RD COLUMN OF THE FOLLOWING TABLE TO BE SUBSTITUTED FOR THE WORDS AND EXPRESSIONS IN THE 2ND COLUMN WHERE OCCURRING IN THE SAID SECTIONS AND PARTS OF SECTIONS.

Title of Act.	Nos. of Sections and Words and Expressions occurring therein.	Words and Expressions to be substituted in application of Sections to County.
Burgh Police (Scotland) Act, 1892.	Section 164. "Commissioners." "and where any railway bridge aqueduct or canal crosses any footpath or public thoroughfare, the owner thereof shall erect and place an iron or zinc screen under such bridge to carry off the rain water, or the moisture that flows from or percolates through the bridge, to prevent the same falling on persons passing along such footpath or public thoroughfare; and any such owners failing to erect or place such screen shall be liable to a penalty of forty shillings for every day that default is made, after being required by the Commissioners to comply with this enactment."	"District Committee." "and where any rain water or moisture flows from or percolates through any railway bridge aqueduct or canal crossing any footpath or public thoroughfare in such quantity as to cause discomfort to persons passing along such footpath or public thoroughfare or to affect injuriously the surface of such footpath or public thoroughfare the owner thereof shall erect and place an iron or zinc screen under such bridge to carry off any such rain water or moisture or shall take such other means as may be necessary to prevent the same falling on persons passing along such footpath or public thoroughfare and any such owner failing to erect or place such screen or take such measures shall be liable to a penalty of forty shillings for each day that default is made after being required by the district committee to comply with this enactment."

[15 & 16 GEO. 5.] *Lanarkshire County* [Ch. lxi.]
Council Order Confirmation Act, 1925.

A.D. 1925.

Title of Act.	Nos. of Sections and Words and Expressions occurring therein.	Words and Expressions to be substituted in application of Sections to County.
Burgh Police (Scotland) Act, 1892.	Section 223. "Magistrate" - - -	"Sheriff or any two or more Justices of the Peace."
	"Burgh" - - -	"County."
	Section 290. "Magistrate" - - -	"Sheriff or any two or more Justices of the Peace."
	Section 329. "This Act" - - -	"The Public Health (Scotland) Act, 1897, or this Order."
	"Special sewer rate general sewer rate or reasonable sum for use of sewers, private improvement expenses or any charge for the repayment to the Commissioners."	"Special Drainage Rate Public Health General Assessment, or reasonable sum for use of sewers or any charge for the repayment to the District Committee."
	"Commissioners" - - -	"County Council or District Committee respectively."
	Section 330. "Commissioners" - - -	"County Council or District Committee respectively."
	"Burgh General Assessment may be recovered from him under this Act."	"Public Health General Assessment may be recovered from him."
	Section 331. "This Act" - - -	"This Order."
	"Commissioners" - - -	"County Council or District Committee."
	Section 332. "Commissioners" - - -	"County Council or District Committee."
	Section 333. "This Act" - - -	"Public Health (Scotland) Act, 1897, or Housing (Scotland) Acts, 1890 to 1923."
	"Magistrate" - - -	"Sheriff or any two or more Justices of the Peace."

[Ch. lxi.] Lanarkshire County [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

Title of Act.	Nos. of Sections and Words and Expressions occurring therein.	Words and Expressions to be substituted in application of Sections to County.
Burgh Police (Scotland) Act, 1892.	Section 381. "Street" - - - "Burgh" - - -	"Road." "County."
	Section 395. "Burgh" - - - "Magistrates" - - -	"County." "County Council."
	Section 396. "Magistrates" - - - "Burgh" - - -	"County Council." "County."
	Section 397. "Burgh" - - - "Magistrates" - - -	"County." "County Council."
	Section 400. "Magistrates" - - -	"County Council."
	Section 402. "Magistrate" - - - "Magistrates" - - -	"Sheriff or Justice of the Peace." "County Council."
	Section 403. "Magistrate" (where first occurring). "Magistrate" (where second occurring). "Burgh Prosecutor" - "This Act" - - - "Two Magistrates" - - -	"Sheriff or any Justice of the Peace." "Sheriff or Justice of the Peace" (as the case may be). "Procurator Fiscal." "The County Council." "Two or more Justices of the Peace."
	Section 407. "Collector of Police, and applied in the same way and manner as penalties under this Act are directed to be applied."	"The county collector, and carried to the credit of the County Fund of the County."
	Section 412. "Magistrate" - - -	"Sheriff or any Justice of the Peace."
	Section 413. "Magistrate" - - -	"Sheriff or any Justice of the Peace."

[15 & 16 GEO. 5.] *Lanarkshire County* [Ch. lxix.]
Council Order Confirmation Act, 1925.

Title of Act.	Nos. of Sections and Words and Expressions occurring therein.	Words and Expressions to be substituted in application of Sections to County.
Burgh Police (Scotland) Act 1892.	Section 415. "Magistrate" - - -	"Sheriff or any Justice of the Peace."
	"Applied for the purposes of this Act."	"Paid to the County Collector, and carried to the credit of the County Fund of the County."
	Section 433. "This Act" - - - "Burgh" - - - "Magistrates" - - - "Clerk" - - -	"This Order." "County." "County Council." "County clerk."
	Section 434. "Clerk" - - -	"County clerk."
	Section 435. "Magistrate" - - -	"Sheriff or any two or more Justices of the Peace."
	Section 436. "Police Court" - - - "Magistrate" (where first occurring). "Magistrate" (where second occurring).	"Sheriff or Justice of Peace Court." "Sheriff or Justice of the Peace." "Sheriff or any two or more Justices of the Peace."
	Section 438. "Magistrate" - - -	"Sheriff or any two or more Justices of the Peace before whom the offence may be tried."
	Section 439. "Magistrate" - - -	"Sheriff or any Justice of the Peace."
	Section 448. "Magistrate" - - - "Burgh Prosecutor" -	"Sheriff or any two or more Justices of the Peace." "Procurator Fiscal."
	Section 449. "Magistrates" - - - "Clerk" - - -	"County Council." "County clerk."

A.D. 1925.

[Ch. lxi.] *Lanarkshire County* [15 & 16 GEO. 5.]
Council Order Confirmation Act, 1925.

A.D. 1925.

Title of Act.	Nos. of Sections and Words and Expressions occurring therein.	Words and Expressions to be substituted in application of Sections to County.
Burgh Police (Scotland) Act, 1892.	Section 450. "Burgh"	"County."
	Section 451. "Magistrate or Court"	"Sheriff or any two or more Justices of the Peace."
Burgh Police (Scotland) Act, 1903.	Section 18. "Where any footway is taken over or is maintainable by the Town Council they"	"Where any footway is taken over by the County Council or is maintainable by the District Committee the County Council or District Committee."
	"Town Council" (where second occurring).	"District Committee."
	Section 62. "Dean of Guild Court on the application of the Town Council."	"District Committee."
	"Court"	"District Committee."
	"Town Council" (where second occurring).	"District Committee."
	"The said compensation shall be defrayed from the same source as the expenditure referred to in the section of this Act whereof the marginal note is 'Payment of expenses in connection with streets.'"	"the said compensation shall be defrayed from the Highway Rate of the District."
	Section 80.	
	"Town Council"	"County Council."
	"Burgh"	"within the Licensing District of the County in which the premises are situated."
	"penalty he may incur under the Burgh Police Acts."	"penalty he may incur."

[15 & 16 GEO. 5.] *Lanarkshire County* [Ch. lxix.]
Council Order Confirmation Act, 1925.

A.D. 1925.

Title of Act.	Nos. of Sections and Words and Expressions occurring therein.	Words and Expressions to be substituted in application of Sections to County.
Burgh Police (Scotland) Act, 1903.	Section 80—(<i>cont.</i>). “Principal Act or any local Police Act as the case may be.” “Section 400 of the principal Act.” Section 81. “under the immediately preceding section.” “Magistrates ” - -	“Local Government (Scotland) Act, 1889.” “Section 400 of the Burgh Police (Scotland) Act, 1892, as applied to the County by this Order.” “from the County Council.” “County Council.”

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C. 2; 28, Abingdon Street, London, S.W. 1;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
or 120, George Street, Edinburgh;
or through any Bookseller.

1. The first part of the paper is devoted to a discussion of the

2. The second part of the paper is devoted to a discussion of the

3. The third part of the paper is devoted to a discussion of the

4. The fourth part of the paper is devoted to a discussion of the

5. The fifth part of the paper is devoted to a discussion of the

6. The sixth part of the paper is devoted to a discussion of the

7. The seventh part of the paper is devoted to a discussion of the

8. The eighth part of the paper is devoted to a discussion of the

9. The ninth part of the paper is devoted to a discussion of the

10. The tenth part of the paper is devoted to a discussion of the

11. The eleventh part of the paper is devoted to a discussion of the

12. The twelfth part of the paper is devoted to a discussion of the

13. The thirteenth part of the paper is devoted to a discussion of the

14. The fourteenth part of the paper is devoted to a discussion of the